

RentAlert PH

Eviction Process Guide (Rule 70 - Philippines)

This guide explains the legal steps to remove a tenant in the Philippines through an **Unlawful Detainer** case.

STEP 1 Demand Letter

You must send a formal demand letter to the tenant. The letter must tell them to pay and leave the property. You must wait at least **15 days** (for residential) or 5 days (for commercial) after they receive it before taking the next step.

STEP 2 Barangay Conciliation

If the landlord and tenant live in the same city or town, you must go to the Barangay for a hearing. If you cannot agree, the Lupon will give you a **"Certificate to File Action."** You need this to go to court.

STEP 3 Filing the Complaint

File a "Complaint for Unlawful Detainer" at the Metropolitan or Municipal Trial Court where the property is located. This must be done within **1 year** from the last demand letter.

STEP 4 Summary Procedure

Eviction cases are usually handled under **Summary Procedure**. This means the court moves fast. There is usually no full trial; the judge decides based on "Position Papers" and evidence submitted by both sides.

STEP 5 Judgment and Writ of Execution

If the judge rules in your favor, they will issue a **Judgment**. To physically move the tenant out, you must ask for a **Writ of Execution**. A sheriff will then serve notice and enforce the eviction if the tenant refuses to leave.

IMPORTANT: "Self-help" eviction—like cutting off electricity/water or changing locks without a court order—is illegal and can lead to criminal charges against the landlord. Always follow Rule 70 of the Rules of Court.